Baxley / Turner CTS LoneStar

Converted Evidence Packet

Prepared from the uploaded DOCX files on June 3, 2026. Converted without substantive editing or condensation.

Confidential / Attorney Work Product

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Note: This packet preserves the converted source documents as separate sections. It does not replace legal review and does not alter the legal meaning of any source document.

Case Brief & Status — Baxley / Turner (CTS LoneStar)

Prepared by Garrett Baxley · June 3, 2026 · Work product for counsel · Not legal advice

I. Snapshot

- **Employee:** Garrett Baxley (DOB 1/13/1994 — age 32, so the ADEA/OWBPA 21-day/7-day rules do not apply as a matter of law).
- **Employer / role:** Turner Construction Company; HR Manager on the CTS LoneStar JV (Turner / Clayco / Source Building Group / TW Constructors) supporting a Google data center, Haskell, TX.
- **Hired:** Oct 8, 2025. **Terminated:** May 19, 2026 (~7.5 months), by letter signed by **Jeff Dolan, VP & Senior Director of HR.**
- **Compensation:** base ~**$125K** (confirmed by the severance math: 2 months = $20,800). The "$250K assignment memo through 11/28/2029" figure is not reflected in Turner's pay and is contradicted by Release ¶13.
- **Stated termination reason:** poor performance / "not doing the work." Disputed.

II. The deal on the table (signing deadline ≈ June 9, 2026)

Term	Detail
Separation pay	$20,800 (two months), less taxes
COBRA offset	$1,865.66 lump sum (~2 months)
Other	Outplacement services (Vantage Point)
Deadline	21-day review period from May 19 → ~June 9; no revocation clause; offer can be withdrawn after it lapses
Release scope	Full waiver of ADA, Title VII, Texas Labor Code Ch. 21, ADEA, FMLA, Payday Law, common-law claims (EEOC charge allowed but no monetary recovery)
Status	UNSIGNED

III. Key timeline (Feb–May 2026)

- **Feb 9** — "Aligning on JV Execution" email to Corina: "shift from owning the work to executing… I need to reset this."
- **Feb 13** — HRM Bootcamp pre-work email requires completing an "Owner's Manual."
- **Feb 16** — began Lyra Health (Turner EAP) care; provider options included psychiatric med management.
- **Feb 17** — emailed Corina the "Owner's Manual" disclosing he is on the autism spectrum (framed "not a request for special treatment").
- **~Feb 18** — Corina calls the next day; depression discussed; she asks what he needs (his account).
- **Feb 23** — Jeff Dolan welfare-checks his personal phone ("doing great things… under a difficult situation… you are appreciated… stay positive").
- **Apr 20** — "Alignment" escalation to Jeff Dolan, cc Kevin Ward. **Apr 21** — Kevin replies.
- **Apr 22–23** — "CTS ER Concern – Alignment" (safety/compliance) to Corina/Kevin.

- **May 4** — 9-page memo to Kevin Ward; “GB HR Concerns.” Kevin to Andy (May 5): concerns “significant enough that… we need to be aware… and think through the right way to support.”
- **May 5 / May 12 / May 13–14** — substantive, dated work product (intern deck + ReView form; HR-DOS build; SPO recruiting flyers under Google constraints; JV holiday schedule).
- **May 19** — terminated; Jeff signs the letter; Garrett asks why relocation/reassignment was not considered (his account).

IV. Claims in play

- **ADA — disability discrimination, “regarded as,” and failure-to-accommodate (PRIMARY).** Garrett has a treated disability (autism + depression/anxiety/ADHD) and disclosed it; he tied his “performance” struggle to the condition with both decision-makers.
- **Pretext / false performance rationale.** Strong on the facts (documented work) — but note: in at-will Texas, a false performance reason is not illegal by itself; pretext matters only as pretext for disability discrimination.
- **Retaliation — weaker.** Complaints about role clarity/support are not protected activity; the April 22 safety/compliance concern is the closest call.
- **Contract / $250K assignment memo — weak** (Release ¶13 “no reliance on outside promises” + Texas at-will).

V. Where it stands (honest synthesis)

Bottom line: a real, negotiable, settlement-leverage case — stronger than the 2-month offer, but not a guaranteed big verdict. What improved most: the “did they know” element moved from contested to strong.

Stronger:

- “They knew” is now strong — verbal disclosures to **both** decision-makers (Corina: depression/anxiety/suicidality; Jeff: “my mind works differently”), and Garrett tied his **performance** struggle to the condition to both — connecting the stated firing reason to a disclosed disability.
- “Actual disability” is airtight — autism (Owner's Manual) + treated depression/anxiety/ADHD (Lyra + medications).
- “Not doing the work” is well-rebutted by dated work product days before termination.
- Real leverage — CEO, Chief Legal Officer, and Chief People Officer already involved; a Google data-center backdrop; a difficult optic for Turner.

Still hard:

- The strongest disclosures are **verbal = Garrett's testimony**; corroboration is the #1 open item.
- **Causation** (fired because of the disability, vs. a real/unfair performance call) is contested; Turner's supportiveness cuts against “animus.”
- Structural headwinds: at-will Texas, under 40, ~7.5 months, ~$125K comp.
- Self-made discovery liabilities (AI “reconstruction” docs; a May 8 self-coaching memo) — quarantine.

VI. Clocks

Item	Window	Approx. date
Severance signing (most urgent)	21 days	~June 9, 2026
OSHA §11(c) (only if safety-retaliation)	30 days	~June 18, 2026
Texas CRD charge	180 days	~Nov 15, 2026
EEOC charge	300 days	~Mar 15, 2027

VII. Key people

- **Corina Murguia** — HR Director (manager). **Jeff Dolan** — VP & Sr. Dir. HR (signed termination). **Kevin Ward** — Sr. HR Director ("intake"). **Jordyn Waters** — HR Generalist. **Andy Tandon** — Project Executive. **Rodney Pope** — SVP Employee Relations (handling review). **Peter Davoren** (CEO), **Patrick Blake** (CLO), **Aaron Wiebelhaus** (CPO) — escalation recipients.

Prepared by Garrett Baxley as personal work product for his attorney. This is a self-organized summary and recollection, not legal advice and not a verbatim record. Not a lawyer's opinion. June 3, 2026.

ADA Evidence Record — Disability Disclosure & Follow-Up Conversation with Corina Murguia

Prepared by: Garrett Baxley

Date prepared: June 3, 2026 (reconstructed from memory; exact conversation date to be confirmed)

Purpose: Memorialize a previously undocumented conversation directly relevant to Turner's knowledge of my disability and my expressed need for support. This belongs with all ADA-related materials.

Factual account

1. On or about **February 17, 2026**, I gave Corina Murguia (my manager) a written **"Owner's Manual"** that disclosed I am **on the autism spectrum** and described the workplace conditions I need in order to perform — explicit expectations, defined standards, role clarity, and consistent, direct feedback. It explained that **ambiguity destabilizes me** and that, if prolonged, the resulting spike can move from anxiety to panic to depression.
2. **The next day** (on or about **February 18, 2026 — exact date to confirm**), Corina called me and we spoke for an extended time.
3. During that call, **the subject of depression came up.** Corina shared that her son (or a close family member) had battled depression. She became emotional and **cried**.
4. **Corina asked me directly whether I needed anything.**
5. **I told her I just needed support — specifically, that removing the ambiguity is what helps me.**

To confirm / corroborate (open items)

- Exact **date and approximate time** of the call.
- **Medium**: phone, Teams, or in person?
- Did I **mention this conversation to anyone at the time** (therapist, family, friend) or reference it in any text/email? Any such contemporaneous reference would corroborate it.
- Did **Jeff Dolan or Kevin Ward** (involved in the termination decision) know about my disability disclosure, or did knowledge stay with Corina?

Why this matters (analysis — for counsel, not fact)

- **Employer knowledge of disability.** Following the Owner's Manual, this call establishes that my direct manager knew I am a person with a disability (autism; related anxiety/depression). Employer knowledge is a required element of ADA discrimination and failure-to-accommodate claims.
- **Accommodation request / interactive process.** Corina **affirmatively asked what I needed**, and I **identified my need** (remove ambiguity / provide support and structure). Combined with the Owner's Manual's specifics, this is — in substance — a request for reasonable accommodation and the start of an interactive process, even without the words "ADA" or "accommodation."

- **Failure to act.** Despite this disclosure and stated need, no facilitated reset or structural support followed. I continued raising the same issues (April 20 escalation) and was terminated May 19, 2026 on a performance/"availability" rationale.
- **Cures the earlier framing concern.** It helps answer any argument that my "this isn't a request for special treatment" language waived accommodation — here, my manager *asked* what I needed and I *told* her.

UPDATE (June 3, 2026) — written disclosure now confirmed

- **The disclosure is documented in writing, not just verbal.** There is a **February 17, 2026 email from Garrett (gbaxley@tcco.com) to Corina Murguia (cmurguia@tcco.com)** with **"GB - Owners Manual.docx" attached** — the document disclosing autism and describing needs. This converts the disclosure from a verbal recollection into a timestamped written record inside Turner's own email system.
- **Company-sanctioned channel.** Turner's **HRM Bootcamp pre-work required employees to create and submit "Owner's Manuals."** The disclosure went through a normal, employer-invited HR process — not unsolicited oversharing. (See both edges in the strategy notes.)
- **Decision-maker knowledge (open item).** Disclosure went to **Corina** (manager). Whether **Jeff Dolan / Kevin Ward** (who executed the May 19 termination) independently knew, or whether Corina influenced/recommended the decision, is the "cat's-paw" question to confirm with counsel.

PRESERVATION — urgent (do not delay)

- The **native February 17 email and the native "GB - Owners Manual.docx" attachment** (with metadata) must be preserved now. Garrett is terminated and may no longer have access to the tcco.com mailbox; the authoritative copy sits in **Turner's custody**.
- The **Teams thread with Corina** (including her message marked **"Edited Today at 7:07 AM"**) should be preserved — Teams may retain edit history showing the original text.
- **Counsel should issue a litigation-hold / preservation letter to Turner** so these records (email, Teams, HRM Bootcamp materials) are not deleted or overwritten.

UPDATE 2 (June 3, 2026) — corroborating "welfare check" text (Feb 23, 2026)

- On or about **February 23, 2026**, after I turned my phone off for the night to disconnect (and had left my work phone at the office), **Jeff Dolan texted my PERSONAL phone** because colleagues were worried about my safety/wellbeing — words to the effect of *"your coworkers are worried, please let me know you are safe."* I replied that I "just needed to disconnect."
- Partially captured already in the Feb 23 iMessage thread (image **IMG_6119**): Jeff — *"you have been doing great things for us under a difficult situation… Corina let me know you texted her and left your work phone at the office… I was starting to worry… Please know you are appreciated and I have an interest in helping navigate this issue."*
- **Significance (analysis, for counsel):** Within ~6 days of the Feb 17 autism/Owner's Manual disclosure, Turner leadership — **including Jeff Dolan, who signed the May 19 termination letter** — personally knew I was in serious (mental-health) distress, enough to

run a safety/welfare check. Supports the ADA "employer knowledge" element and a "regarded as disabled" theory, and ties that knowledge directly to a decision-maker.

- **Double-edged — note honestly:** the same episode documents that I became temporarily unreachable, which Turner could fold into its later "availability / Teams-status" narrative. Counter: if the unavailability was a manifestation of the disability I had just disclosed, then terminating/disciplining for disability-related conduct *without* accommodation is part of the ADA problem, not a defense.
- **Preservation:** this thread is on my PERSONAL phone (my custody — lower deletion risk than the Turner email/Teams). Screenshot the FULL thread with visible dates/timestamps and back it up now; the "please let me know you are safe" line is likely earlier than the 12:51 PM message already captured. It also likely exists on Jeff Dolan's device.

UPDATE 3 (June 3, 2026) — Lyra Health (Turner EAP) records corroborate the underlying condition & treatment

- Through Turner's employer-sponsored mental-health benefit (**Lyra Health — turner.lyrahealth.com**), I was in active care during the relevant window:
  - **Feb 16, 2026** — care-navigator call; provider options included psychiatric **med eval / medication management (prescribers)** and counselors (Abilene/Haskell area + video). I tried to book Dr. Melissa Kwak (prescriber, unavailable) and booked Ronelle Boyd, LCSW.
  - **Apr 12–13, 2026** — had to cancel because one refill was a **controlled substance** that Lyra routed to community care.
  - **Apr 16, 2026** — asked to push a session back an hour because I was "pulled into a meeting" in my HR Director role (work impinging on treatment).
- **Significance (analysis, for counsel):** Contemporaneous, third-party, timestamped proof that I *had* and was *actively treating* a mental-health condition during Feb–Apr 2026 — beginning **one day before** the Feb 17 Owner's Manual disclosure. This solidifies the **"actual disability"** element and rebuts any claim the condition was manufactured after termination. Consistent with the Feb 18 call, the Feb 23 "needed to disconnect" episode, and the Owner's Manual.
- **IMPORTANT distinction — do NOT over-read this:** Lyra is confidential/HIPAA-protected. **My use of Lyra does NOT, by itself, put Turner's decision-makers on notice of my disability** — the employer receives only aggregate utilization data, not who used it or why. Employer "notice" still rests on the **Feb 17 Owner's Manual to Corina + the Feb 18 call + Jeff's Feb 23 welfare text.** Do not argue "I used Turner's Lyra benefit, so they knew."
- **Discovery caution:** an ADA claim puts my medical condition "at issue," which means Turner could obtain my treatment records (including these and the controlled-substance detail) in discovery. Counsel should advise on this before any claim is filed.
- **Preservation:** these emails are in my personal Gmail (my custody — safe). Lyra also holds records, obtainable via counsel with my authorization. Export/back up the Gmail thread.

UPDATE 4 (June 3, 2026) — current psychiatric medications (corroborates treated conditions)

- I currently take **trazodone, Celexa (citalopram), and Adderall (amphetamine salts).**
- **Adderall is a Schedule II controlled substance** — this is the "controlled substance" refill that Lyra routed to community care on Apr 13, 2026 (corroborates that email).

- Commonly prescribed for, respectively: sleep/anxiety (trazodone), depression/anxiety (Celexa, an SSRI), and ADHD (Adderall). Combined with the autism-spectrum disclosure in the Owner's Manual, this reflects a treated neurodevelopmental + mood/anxiety profile. **Exact diagnoses to be confirmed by prescriber records.**
- **Significance (analysis, for counsel):** further corroborates the **"actual disability"** element — ADHD, depression, and anxiety are all ADA-recognized impairments, as is autism. Does **NOT** by itself establish employer notice; my diagnoses/medications were private unless disclosed to Turner.
- **Open item — scope of disclosed disability:** the Feb 17 Owner's Manual referenced being "on the spectrum." Did it (or any other communication) also convey ADHD, depression, or that I was on medication? That defines what Turner was actually on notice of.
- **Records to obtain via counsel (with my authorization):** prescriber name(s), diagnosis dates (especially whether they pre-date Turner), pharmacy records.

UPDATE 5 (June 3, 2026) — full Jeff Dolan text thread captured (PRIMARY) + "regarded as" significance

- The complete Jeff Dolan thread is now captured as **primary screenshots** (not reconstruction):
  - **Feb 23, 12:51 PM (Jeff):** *"Garrett, This is Jeff. I want you to know you have been doing great things for us under a difficult situation. Corina let me know you texted her and left your work phone at the office. I know you are a good person and you have good intentions. Please know you are appreciated and I have an interest in helping navigate this issue. Please do your best to stay positive."*
  - **Feb 23 (me):** *"I'm sorry - not my intention at all. I just needed to disconnect."* **(Jeff):** *"Perfectly understood… You might have a bunch of your colleagues reaching out to you. Corina and Sydney wanted to make sure you are ok."*
  - **Mar 21, 2:27 PM (Jeff):** *"I am checking in on you. Did you get any rest last night?"* **(me):** *"…just woke up from a nap… I appreciate you for checking in."* **(Jeff):** *"That's music to my ears!!! Call me if you need to talk. Enjoy some downtime."*
- **Clarification:** the "rest / downtime" references were during an in-person work gathering — the HR group went out to bars and **I went to bed / rested instead** (consistent with needing to withdraw/recharge; leadership noticed and was supportive).
- **Significance (analysis, for counsel):** strongest **decision-maker-knowledge** evidence yet. **Jeff Dolan — who signed my termination — personally knew, in writing, that I was navigating a "difficult situation," needed to "disconnect," needed "rest," and should "stay positive,"** and that Corina and Sydney were worried about my wellbeing. Supports an ADA **"regarded as" theory** (post-ADAAA the employer need only have *perceived* an impairment — it need not know the diagnosis). Also rebuts "not doing the work" (*"doing great things for us"*).
- **DOUBLE-EDGED — important:** these texts are warm and supportive. Turner will use the *same* messages to argue it was a caring employer that did welfare checks — i.e., to undercut any claim of discriminatory animus. So this evidence is strongest as (a) decision-maker *knowledge*, (b) "regarded as," and (c) rebuttal of the performance rationale — **not** as proof of intent to discriminate. The causal link (fired *because of* the perceived impairment) still must be built.

UPDATE 6 (June 3, 2026) — verbal disclosures of depression/anxiety/suicidality (Corina) and neurodivergence (Jeff)

- Beyond the written autism disclosure (Owner's Manual), I made deeper **verbal** disclosures to **both decision-makers**:
  - **To Corina (manager):** I told her about my **depression and anxiety**, that I had experienced **suicidal periods**, and that I had been **"struggling with performance as identity."** *[exact wording / date / setting to confirm]*
  - **To Jeff Dolan (VP, who signed my termination), in person at the conference [HRM Bootcamp, ~Mar 10–12, 2026 — confirm]:** I said **"my mind works differently,"** that **"this is all I have going on in my life right now,"** and that I had been **"struggling with performance as identity."** *[exact wording / date to confirm]*
- **Significance (analysis, for counsel):** if established, this is the **strongest notice evidence in the case** and closes the decision-maker-knowledge gap — **both** the manager and the terminating VP had direct verbal knowledge of a mental-health disability (depression, anxiety, suicidality) and neurodivergence, AND I expressly tied my **"performance"** struggle to that condition **to both of them.** That connects the stated termination reason ("performance") directly to my disclosed disability — the core of an ADA discrimination theory.
- **BUT these are verbal = currently my account.** As with the Feb 18 call, there is (so far) no email/text quoting these statements. They are made more credible by surrounding documentation — Jeff's Feb 23 welfare texts ("difficult situation," "stay positive," "are you safe," Corina/Sydney worried), the Owner's Manual's anxiety/depression language, and the Lyra treatment records — but the specific statements need **precise memorialization now** and **corroboration** (who else was present; any contemporaneous note/text; anyone I told at the time).
- **Discovery reality:** disclosing suicidality is powerful for notice but deeply personal; it and my full mental-health record will be exposed in litigation. Decide scope/timing with counsel.

UPDATE 7 (June 3, 2026) — disclosure of distress to the Project Safety Director (potential corroborating WITNESS)

- Around **[date — confirm]**, I reached out to the **CTS/Project Safety Director [name — confirm]** and told him I was **"not doing well"** / **"really struggling,"** and asked for the **on-site mental-health counselor numbers ASAP.**
- I do **not** have my own phone/records of that exchange, **but the Safety Director would corroborate it.**
- **Significance:** another disclosure of mental-health distress through a Turner/CTS channel → supports **company knowledge / "regarded as."** Caveat: the Safety Director was likely **not** a decision-maker in the termination, so this is "company knowledge," not decision-maker knowledge — but it is **one of the few disclosures with a third-party witness.**
- **WITNESS-HANDLING CAUTION (important):** do **NOT** contact him to "get him to collaborate," script, or coach him — that can backfire badly, and if I sign the Release, **¶5 bars cooperating with/soliciting other witnesses.** Instead: record his **name, approximate date, and what was said**, and tell **counsel** he can corroborate; let counsel approach him the proper way (witness statement / discovery / subpoena). The texts may also exist on **his** device or in Turner's systems → **add to the preservation/hold list.**

This is my best recollection prepared June 3, 2026 for my attorney's review. It is not a verbatim transcript.

CORROBORATED FACTS vs. STILL-JUST-MY-ACCOUNT

Garrett Baxley / Turner CTS LoneStar · prepared June 3, 2026 · work product for counsel · NOT legal advice

Purpose: show, at a glance, what is backed by a document or third party vs. what currently rests only on my own recollection/notes. Bringing this to a lawyer demonstrates I know the difference — and tells them exactly where corroboration is still needed.

✅ CORROBORATED (document or third-party source)

Fact	Source
Hired 10/8/2025; **terminated 5/19/2026** by letter signed by **Jeff Dolan, VP & Sr. Dir. HR**	Termination letter (IMG_6108)
Severance = **$20,800 (2 mo) + $1,865.66 COBRA**; **21-day** signing window (~June 9); full release of ADA/Ch. 21/etc.; currently **unsigned**	Termination letter + Agreement & General Release (IMG_6108–6114)
Base comp **~$125K** (severance math: 2 mo = $20,800)	Termination letter
Feb 17, 2026: I emailed Corina the "Owner's Manual" disclosing I am on the autism spectrum	The Feb 17 "Personal Owners Manuel" email + GB-Owners Manual.docx (exists; native in Turner custody)
Turner's **HRM Bootcamp required** employees to complete Owner's Manuals	Feb 13 Bootcamp pre-work email
I escalated concerns in writing: **Feb 9, Apr 20 (to Jeff, cc Kevin), Apr 22 (CTS ER Concern), May 4 (GB HR Concerns)**	The emails themselves
Kevin Ward (to Andy, May 5): my concerns were "significant enough that… we need to be aware… and think through the right way to support"	Kevin's email
Jeff Dolan (Feb 23 texts): "you have been doing great things for us under a difficult situation… you are appreciated"; welfare-check after I went dark	iMessage thread (IMG_6119)
Substantive **work product days before termination**: rebuilt intern deck + ReView form (May 5), 4 SPO recruiting flyers under Google constraints (May 13–14), JV holiday schedule (May 14), HR-DOS build w/ GitHub PRs (May 12), onboarding manual, "How to Escalate"	Emails + attachments + screenshots (IMG_6071, 5966, 6072, 5974; SPO email thread; HRDOS record)
Corina raised **Teams-status/availability**; her message later shows **"Edited"**; a Jeff	Teams screenshot (IMG_6107/Corina .eml); IMG_6116

coaching text also shows "Edited"	
Corina = HR **Director** (KC, MO), my manager	Email signature (IMG_5966)
Dec 2025 **"Haskell Site Investigation"** (Source Build Group; medical-privacy/ADA/retaliation re third parties) that I handled/forwarded to Jeff & Corina	Reconstruction docs reference; **native to be preserved**

⚠️ STILL JUST MY ACCOUNT (needs corroboration before treated as fact)

Claim	What would corroborate it
The ~Feb 18 follow-up call (Corina cried, shared her son's depression, asked what I needed; I said "support / remove ambiguity")	Any text/email I sent about it at the time; anyone I told (partner, friend, therapist); a calendar/call log; Corina's own account
The "are you safe" welfare line specifically	Screenshot the **full** Feb 23 thread (line is likely earlier than the 12:51 PM message already captured); also on Jeff's device
I raised concerns **"in writing four times in three months"**	Producing the four actual writings (asserted, not yet located/exported)
Manager quotes: **"some gaps… ," "OK fine Garrett goodbye," "self-reflect why people come to me," "fuck this"**	These are from my own self-notes ("Cm personal," "Proof") — need the underlying emails/texts or a witness (e.g., Tandee Butler for the "fuck this" line)
Termination-meeting content (Jeff sarcastic re my memo; I asked "why termination not relocation")	My self-note only — **write the Termination-Meeting Memo today**; any second attendee
Joe Glowacki contradiction (Apr 20 relayed "not engaged" vs. Apr 27 phone call complimenting my work)	Glowacki's own statement; any email/text
"They reused/repackaged my work" (intern tracker)	Side-by-side / version history / metadata — currently inference only
"Jordyn is my employee" (bypass theory)	Org chart / reporting-line documentation
Thomas Milo / Google as a witness	Appears in **no document** — entirely my account
$250K comp / assignment through 2029	The assignment memo itself — but Turner's pay = ~$125K and Release ¶13 disclaims outside promises (likely weak)

🚫 HANDLE WITH CARE (could hurt me — keep private / route through counsel)

Item	Why
May 8 "Corina Edited message" self-coaching memo (how to manage her	Reads as calculating, not struggling — opposite of the sympathetic narrative;

perception, keep DND on, "give her the win")	discoverable
AI "reconstruction" docs + "behavior counts" (e.g., "74 instances of good faith")	Advocacy artifacts, not evidence; my own tools flagged them as unverified
My large retained document trove vs. **Release ¶2** (return property / keep no copies) and **¶5** (no cooperating with other claimants)	Don't sign a false representation; don't coordinate with Tandee/others — let counsel manage retention and witnesses

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Bottom line for counsel: The strong, documented spine is (1) the work-product rebuttal of "not doing the work," (2) a written autism disclosure to my manager + the terminating VP's contemporaneous knowledge of my distress, and (3) executive/CLO attention. The parts that would make it *illegal discrimination* — the accommodation request, the performance-gap-after-every-ask sequence — currently rest on my own notes and need corroboration. The case strengthens materially if the Feb 18 call and decision-maker knowledge of the *disability* can be corroborated.

Legal Risk Assessment (Scored) — Baxley / Turner (CTS LoneStar)

Prepared by Garrett Baxley · June 3, 2026 · Attorney work product · NOT legal advice

> Framework: **Severity (1–5) × Likelihood (1–5) = Risk Score.** Scored from the claimant's perspective — a "risk" is an outcome that is **bad for Garrett.** Bands: GREEN 1–4 · YELLOW 5–9 · ORANGE 10–15 · RED 16–25. This is a self-prepared starting point and must be reviewed by a qualified Texas employment attorney.

Matter: ADA-based challenge to a May 19, 2026 termination; a two-month severance / general release is pending with a **~June 9, 2026 signing deadline.**

Assessor: Garrett Baxley (self-prepared for counsel). **Privileged:** treat as attorney work product.

1. Posture summary

A real, negotiable, **settlement-leverage** ADA matter. It is **stronger on notice** (both decision-makers knew of the disability/distress) and **weaker on accommodation** (no accommodation was actually requested — so the failure-to-accommodate theory largely falls away and the case rides on disability **discrimination / "regarded as"** + **pretext**). The single most urgent risk is **procedural** — the signing deadline — not the merits.

2. Claim viability (current read — reflects that NO accommodation was requested)

Claim	Viability	Why
ADA — "regarded as" disabled	**Moderate–Good**	No request needed; decision-makers (incl. the VP who signed) knew he was impaired/struggling (Jeff welfare texts); pretext bridges to motive.
ADA — disparate treatment (actual disability)	**Moderate**	Knowledge is strong; the "because of" causation is the contested part.
ADA — failure to accommodate	**Weak / likely not viable**	No accommodation was requested; the Owner's Manual expressly said "not a request for special treatment."
Pretext (false "performance" reason)	**Strong as evidence (not a standalone claim)**	Dated work product rebuts the stated reason and bridges to an illegal motive.
Retaliation (protected activity)	**Weak**	Operational/role-clarity grievances aren't protected; no clear accommodation request or illegal-conduct report.

Texas "wrongful termination"	**None**	At-will; no freestanding claim for an unfair/baseless firing.
Contract / $250K assignment memo	**Weak**	At-will + Release ¶13; useful only to argue expected duration for damages.

3. Risk register (Severity × Likelihood)

Risk to Garrett	Score	Primary mitigation
Severance **deadline lapses** with no written extension → offer withdrawn, no floor	**S4 × L4 = 16 · RED**	Written tolling/extension before June 9; retain counsel now
Failure-to-accommodate theory fails (no request was made)	**S3 × L5 = 15 · ORANGE**	Pivot to discrimination / "regarded as"; do not lead with accommodation
Causation unproven ("because of" disability; at-will + supportive employer)	**S4 × L3 = 12 · ORANGE**	Build pretext, timing, decision-maker knowledge
"Closure mode" — Turner perceives no risk → no offer above 2 months	**S3 × L4 = 12 · ORANGE**	Counsel surfaces the ADA risk via demand **before** the deadline
Discovery exposes self-made materials + full medical record	**S3 × L4 = 12 · ORANGE**	Quarantine the self-coaching memo / AI reconstructions; scope medical with counsel; favor pre-suit settlement
Damages capped at ~$125K rate ($250K basis rejected)	**S3 × L4 = 12 · ORANGE**	Confirm paystub rate; use memo for duration only; calibrate demand
Signing the Release → all ADA claims waived for two months	**S5 × L2 = 10 · ORANGE**	Do not sign without counsel; pause the deadline
Verbal disclosures uncorroborated → not credited (he-said/she-said)	**S3 × L3 = 9 · YELLOW**	Memorialize; corroborate (safety director, conference witnesses, contemporaneous texts)
Witness mishandling (contacting safety director / Tandee) → tampering optics; ¶5 breach if signed	**S3 × L2 = 6 · YELLOW**	Do not contact witnesses; let counsel approach

4. Focused memo — top risk: the deadline / signing the release (RED, score 16)

Risk description. The 21-day window to sign the general release runs out ~June 9. If it lapses with no written extension, Turner can withdraw the $20,800 offer, leaving no guaranteed floor; conversely, signing forfeits every ADA claim for two months.

Background. Terminated May 19; release received the same day; Rodney Pope (ER) is in "providing closure" mode and does not appear to perceive legal risk; no counsel retained yet.

Severity: 4 — High. Losing the floor or waiving the claim is a substantial swing relative to the realistic value of the matter.

Likelihood: 4 — Likely. The deadline is ~6 days out, no extension is in hand, no lawyer is engaged, and the counterparty is in wind-down mode — all triggering conditions are present.

Risk Score: 16 — RED / Critical.

Contributing factors. Short runway; no counsel engaged; Turner not perceiving risk; deadline pressure to sign.

Mitigating factors. Offer still open; release UNSIGNED; the underlying ADA facts give counsel a credible basis to demand an extension.

Mitigation option	Effectiveness / effort	Recommended?
Retain counsel now; counsel requests written tolling/extension	High / Low–Med	**Yes**
Garrett sends a neutral written deadline-pause request himself	Med / Low	Yes (only if counsel not yet retained)
Do nothing and let the deadline run	— (worst case)	**No**
Sign the release to lock the $20,800	Forfeits the claim	**No** (not without counsel)

Recommended approach. Retain counsel today; secure a **written** deadline pause (without prejudice) before June 9; do not sign.

Residual risk after mitigation: YELLOW.

Monitoring: daily until the deadline is paused in writing or counsel is driving.

5. Escalation

Under any reasonable framework, an employment matter with potential litigation, a release deadline, and discrimination exposure is a **mandatory "engage outside counsel"** item. This is beyond self-management — **retain a qualified Texas employment attorney now.**

6. Recommended overall approach

- **Retain counsel today**; get the **deadline paused in writing** before June 9.
- **Lead with "regarded as" / disability discrimination + pretext — not failure-to-accommodate.**
- Use the disclosures to prove the employer **knew** (the element these theories need), not to argue an "ask" that didn't happen.
- **Corroborate** the verbal disclosures (safety director, conference witnesses, contemporaneous texts).
- **Quarantine** the self-coaching memo and AI reconstructions; decide medical-discovery scope with counsel.

- Have counsel **surface the ADA risk via a demand** to defeat "closure mode" and re-price above two months.
- **Calibrate the demand to the ~$125K rate**; treat "$250K / two years" as an anchor, not an expectation.

7. Next steps

1. Confirm actual paystub comp rate — Garrett — today.
2. Retain employment counsel + request written deadline extension — Garrett/counsel — before June 9.
3. Fill the termination-meeting memo; corroborate verbal disclosures — Garrett — this week.
4. Counsel preserves evidence (hold letter) and prepares demand — counsel — this week.

Prepared by Garrett Baxley as work product for his attorney; not legal advice; scores are judgment calls for counsel to refine.

Meeting Briefing — Rodney Pope Call (June 4, 2026)

Prepared by Garrett Baxley · June 3, 2026 · Work product for counsel · Not legal advice

Objective

- This is **not** about closure or feedback — it is about the **accuracy of the termination rationale** and whether Turner had the complete record.
- Secure a **written** pause of the severance deadline if Turner is reviewing.
- Preserve claims; commit to nothing verbally; then route Turner to counsel.

Three anchors (return here)

- "**Intake is not resolution.**"
- "**No facilitated reset occurred.**"
- "**The unresolved barrier was later reframed as my performance failure.**"

Opening (60–90 seconds)

"Rodney, I appreciate the time. I escalated because I believe the termination rationale is materially inaccurate and based on an incomplete record. I raised the same operating breakdown for months; there was intake but no facilitated reset; then I was terminated for what I believe was the result of that unresolved issue. I'm here to answer reasonable questions and see whether Turner will review and resolve this before it becomes more formal."

If he says — you say

If Rodney…	You respond…
"We'd like to review internally"	"I appreciate that. Given the deadline, can Turner confirm in writing that it's paused during the review, without prejudice to my rights?"
"We stand by the decision"	"I don't think the review is complete if it doesn't account for the documented escalation history, the lack of a facilitated reset, and the work record."
"Is there a number you want?"	"I'm not going to negotiate against myself. I'd like Turner to review the record and come back with a serious proposal."
"We'll revise the severance / offer X"	"I appreciate that. I'll review it in writing and respond in writing."
Frames it as wanting closure/feedback	"This isn't about closure. It's that the termination rationale doesn't match the documented record."
Stand-by + better offer + new deadline (combo)	Don't react to the number; "Send it in writing with the deadline stated; I'll respond in writing."

Hard stops — do NOT say

- “I want two years.” / “I'm suing.” / Don't volunteer “ADA.”
- Don't name medical details, diagnoses, suicidality, or medications.
- “I have 200 files.” / “I'll send everything.”
- “Google is involved.” / “I'll contact Google.”
- Do **not** agree to anything verbally — every commitment goes through writing.

Secure before you hang up

- If they're reviewing: the **written deadline pause** (“without prejudice”).
- Who is on the call and their role (if counsel joins, keep it high-level and factual).
- “Everything in writing” — you'll respond to any proposal in writing.

After the call

1. Write a contemporaneous memo of the call (date, who, exact words).
2. Send it to your attorney.
3. From here, route Turner's communications to your attorney.

Prepared by Garrett Baxley as personal work product for his attorney. This is a self-organized summary and recollection, not legal advice and not a verbatim record. Not a lawyer's opinion. June 3, 2026.

DRAFT — EVIDENCE PRESERVATION / LITIGATION-HOLD DEMAND

FOR ATTORNEY REVIEW BEFORE SENDING · prepared June 3, 2026

> **How to use this:** This is a template. The cleanest path is to have your **attorney send it on letterhead** — it carries more weight and avoids you making statements that affect the ongoing severance discussion. If you need to act before retaining counsel and are worried about deletion, a short neutral version can be sent by you, but **coordinate timing with the Rodney/severance track** — a preservation demand signals you are preparing to litigate, which can pressure Turner (good) or harden them mid-negotiation (risk). Decide the sender and timing with counsel.
>
> Fill the bracketed placeholders. Send by a method that proves receipt (email with read receipt + certified mail).

[Date]

VIA EMAIL AND CERTIFIED MAIL

Turner Construction Company

Attn: Patrick Blake, Chief Legal Officer

[Address]

cc: Aaron Wiebelhaus, Chief People Officer; Jeff Dolan, VP & Sr. Director of Human Resources; Rodney Pope, SVP Employee Relations

Re: Litigation Hold / Demand to Preserve Evidence — Garrett Baxley (employment ending May 19, 2026), CTS LoneStar

Dear Mr. Blake:

I represent Garrett Baxley in connection with his employment with Turner Construction Company and the termination of that employment effective May 19, 2026. Mr. Baxley anticipates potential legal claims arising from his employment and separation, including claims under the Americans with Disabilities Act and Chapter 21 of the Texas Labor Code. This letter places Turner on formal notice of its duty to preserve relevant evidence.

Duty to preserve. Because litigation is reasonably anticipated, Turner and its parents, subsidiaries, affiliates, and joint-venture entities (including the CTS LoneStar JV) must immediately suspend any routine or automatic deletion, overwriting, recycling, or alteration of potentially relevant information, and must preserve it in native format with all associated metadata. This duty extends to information in the possession of Turner's employees, agents, and IT/third-party vendors (e.g., Microsoft 365/Outlook/Teams/SharePoint/OneDrive, mobile-device backups, HRIS/SAP, and any benefits or ER systems).

Categories to preserve (not exhaustive):

1. All emails to/from or referencing Garrett Baxley (gbaxley@tcco.com), including the **February 17, 2026 "Personal Owners Manuel" email to Corina Murguia and its attachment "GB - Owners Manual.docx."**
2. All **Microsoft Teams** messages, chats, and channels involving Mr. Baxley, **including original and edited versions and full edit history** (e.g., the Corina Murguia thread regarding Teams status/availability).

3. All **text messages / SMS / iMessages** between Mr. Baxley and any Turner personnel, including **Jeff Dolan and Corina Murguia** (including the February 23, 2026 thread), in original and edited form.
4. The **HRM Bootcamp** materials and pre-work instructions requiring employees to complete "Owner's Manuals," and any other employees' Owner's Manuals.
5. All documents concerning the **decision to terminate** Mr. Baxley, including notes, evaluations, communications among Corina Murguia, Jeff Dolan, Kevin Ward, Andy Tandon, and any others, and any consideration of relocation/reassignment.
6. The **December 2025 "Haskell Site Investigation"** materials (Source Building Group complaint referencing medical-privacy/ADA/retaliation) and Mr. Baxley's handling of it.
7. Mr. Baxley's personnel file, performance documentation, compensation/assignment records (including any assignment memo), timekeeping, and the **separation agreement** and related correspondence.
8. Calendars, call logs, and access/badge/system-access records bearing on Mr. Baxley's work and availability.
9. All work product authored by Mr. Baxley (onboarding process, intern program deck and ReView form, recruiting flyers, JV calendar/holiday schedule, HR-DOS materials, datasets shared with Alex Willis).

No spoliation. Failure to preserve this information may constitute spoliation and subject Turner to sanctions and adverse inferences. Please confirm in writing within ten (10) business days that a litigation hold has been issued and that the above categories are being preserved.

Nothing in this letter waives any of Mr. Baxley's rights or claims, all of which are expressly reserved.

Sincerely,

[Attorney name]

[Firm / contact]

Counsel for Garrett Baxley

Shorter self-send version (only if sending before counsel is retained — keep it neutral)

To: [Jeff Dolan / Patrick Blake]

Subject: Preservation of records — Garrett Baxley

I am writing to ask that Turner preserve all records relating to my employment and separation, including emails (notably my February 17, 2026 message to Corina Murguia and its "Owner's Manual" attachment), Teams messages and their edit history, text messages with Turner personnel, my personnel and compensation records, documents concerning the decision to terminate me, and my work product. Please suspend any automatic deletion of these materials. I am reserving all of my rights. Thank you. — Garrett Baxley

TERMINATION MEETING — CONTEMPORANEOUS MEMO

Garrett Baxley · meeting date May 19, 2026 · written June 3, 2026 (reconstructed from memory) · work product for my attorney · NOT legal advice

Fill the brackets. Rules: **facts, not spin.** Put **exact words in "quotes."** If you're sure, state it; if you're paraphrasing or unsure, write *(paraphrase)* or *(best recollection)*. Don't guess. This is the only record of the meeting, so precision > completeness.

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1. Logistics

- Date / time: [May 19, 2026, ___ : ___ am/pm]
- Location / format: [in person at ___ / Teams / phone]
- Who set it up, and how was it framed beforehand? [e.g., "Kevin asked for a meeting," nothing said about purpose / told it was about ___]
- **Who was in the room** (names + titles): [Jeff Dolan – VP & Sr. Dir. HR; Kevin Ward – ___; Corina Murguia – ___; anyone else? note-taker? on video?]

2. How it opened / the stated reason

- Who spoke first and what did they say? [ ]
- **Exact reason given for the termination** (as close to verbatim as possible): ["___"]
- Was the word "performance" / "not doing the work" used? By whom, exact words: ["___"]

3. Key statements (verbatim where possible)

- The memo I'd sent (to Kevin) — was it referenced? What was said about it? [Jeff's reaction — exact words: "___"]
- **Relocation / reassignment:** what did I ask, and what was the answer? [I asked: "Why wasn't relocation or reassignment considered?" Answer (e.g., "Nobody raised their hand, brother."): "___" — who said it]
- Any statement that I'd done good work / they were grateful / "not a fair setup after Jake left"? [exact words + who]
- **Did my disability, the Owner's Manual, my disclosures, or "performance as identity" come up at all?** [yes/no — if yes, who said what: "___"]
- Anything said about my wellbeing / the welfare checks / "difficult situation"? [ ]

4. What I said

- My responses, in order, as close to verbatim as I can: [ ]
- Did I sign or agree to anything? [No — confirm I signed nothing and made no admissions]

5. The severance / next steps as presented in the room

- What was I handed or told about severance, the deadline, benefits? [2 months / $20,800; 21 days; benefits end 5/31; final pay 5/29 — confirm what was actually said vs. what's only in the letter]
- Was I told to consult an attorney? [ ]
- How did it end? Who ended it? Next steps stated? [ ]

6. Context / my state

- My physical/emotional state during and after: [ ]
- Did I take any notes during or immediately after? Where are they? [ ]
- Did I tell anyone about the meeting that day (name, when)? [potential corroboration]

7. Anything else I remember that felt important [ ]

I prepared this on June 3, 2026 from memory; it is my best recollection of a May 19, 2026 meeting and is not a verbatim transcript. Prepared for my attorney.